

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MINNESOTA**

JOSEPH KIRCHNER,
Plaintiff,

v.

KEITH ELLISON, in his
official capacity as Attorney
General of the State of
Minnesota,

Defendant.

Case No. 0:26-cv-02594-LMP-DJF

**PLAINTIFF'S MOTION FOR LEAVE TO
APPEAL IN FORMA PAUPERIS**

MOTION

1. Plaintiff-Appellant Joseph Kirchner, proceeding pro se, moves under Federal Rule of Appellate Procedure 24(a)(1) and 28 U.S.C. § 1915(a)(1) for leave to appeal in forma pauperis from the Judgment in a Civil Case entered August 20, 2026 (ECF No. 28) and the Order Granting Motion To Dismiss entered the same day (ECF No. 27), without prepayment of the appellate filing and docketing fees or security therefor.

2. **Inability to pay.** Plaintiff cannot pay the \$605.00 fee for this appeal or give security for it. The attached affidavit, in the form prescribed by Form 4 of the Appendix of Forms to the Federal Rules of Appellate Procedure, shows in detail Plaintiff's income, assets, debts and monthly expenses. Plaintiff has had no employment income during the past year; his savings, from which the \$605 fee for his prior appeal was paid, are exhausted; as of the date of the affidavit he holds \$40 in cash and two bank accounts with balances of -\$67.26 and \$0.46; and he is meeting his expenses by selling personal belongings while seeking employment. His monthly expenses of \$2,575 exceed his monthly income, which averaged \$98.17 over the past twelve months and is expected to be \$0 next month. He has no bankruptcy case pending and receives no public assistance.

3. Entitlement to redress. Plaintiff believes he is entitled to redress. The Complaint pleaded that the Attorney General disposed of Plaintiff's own petition for redress through a written statement of law disclaiming statutory authority the Legislature has conferred (ECF No. 1 ¶¶ 19–21, 96), and sought declaratory and prospective relief directed to the office's standing legal position (ECF No. 1 ¶¶ 95–97). The Court dismissed for lack of Article III standing and under *Ex parte Young* and *Pennhurst* (ECF No. 27). Plaintiff has moved to alter or amend the Judgment under Rule 59(e) (ECF No. 29) on the grounds, among others, that the Order's standing holding rests on a description of the claim that the record paragraphs it cites contradict, that the Order omits the ongoing-conduct allegations and the prospective relief the Complaint pleads, and that a jurisdictional dismissal must be without prejudice. Whatever the disposition of that motion, the questions below are substantial and are presented in good faith.

4. Issues Plaintiff intends to present on appeal. Plaintiff intends to present the following issues, each preserved in the Complaint, the opposition briefing (ECF No. 15) and the Rule 59(e) motion:

a. Whether the district court erred in dismissing for lack of Article III standing by characterizing the Complaint as a demand that the Attorney General investigate and prosecute third parties, where the sole paragraph the court cited for that characterization expressly preserves "the proper exercise of prosecutorial discretion" and asks only that the denial of Plaintiff's petition rest on the law as enacted rather than on a false statement of law (ECF No. 27 at 4–5; ECF No. 1 ¶ 96).

b. Whether a categorical disclaimer of statutory authority conferred by Minn. Stat. §§ 8.31, 8.32 and 299C.061, stated as the office's standing position and applied to dispose of

Plaintiff's petition, is an ongoing violation of law reviewable under *Ex parte Young*, rather than an exercise of prosecutorial discretion complete at the time of the letter (ECF No. 27 at 5–7).

c. Whether the addressee of a false official statement of an office's legislated authority, deployed to dispose of his own petition, has standing to challenge it, where he is the object of the governmental action complained of and the relief sought would redress the injury by requiring a decision on the law as enacted.

d. Whether *Pennhurst State School & Hospital v. Halderman*, 465 U.S. 89 (1984), bars federal claims because their predicate involves a question of state law; and whether a dismissal for lack of jurisdiction may be entered with prejudice or without stating that it is without prejudice (ECF No. 27 at 6, 8; ECF No. 28).

e. Whether the district court abused its discretion in denying leave to amend (ECF No. 27 at 8 n.2) and leave to file a sur-reply (ECF No. 27 at 4 n.1).

5. Good faith. The appeal is taken in good faith within the meaning of 28 U.S.C. § 1915(a)(3): the issues above are not frivolous, and each presents a question on which a reasonable litigant could seek appellate review. *See Coppedge v. United States*, 369 U.S. 438, 445 (1962). Plaintiff has prosecuted this action and the prior related action (No. 0:26-cv-00726-PJS-ECW; Eighth Circuit No. 26-1615) pro se and in compliance with the Court's rules and schedule.

6. Original record. Should leave be granted, Plaintiff requests under Federal Rule of Appellate Procedure 24(c) that the appeal be heard on the original record without reproducing any part of it, subject to the Eighth Circuit's rules on the appendix.

7. Relief requested. Plaintiff respectfully requests that the Court (a) grant leave to proceed on appeal in forma pauperis without prepayment of fees or costs or security therefor; or

(b) if the Court is inclined to deny the motion or to certify that the appeal is not taken in good faith, state its reasons in writing as Rule 24(a)(2) requires, so that Plaintiff may renew the motion in the Court of Appeals under Rule 24(a)(5).

Respectfully submitted,

/s/ Joseph Kirchner
Joseph Kirchner
4440 Parklawn Avenue, #203
Edina, MN 55435
(612) 552-2122
legal@lawsofexistence.com
Plaintiff-Appellant, Pro Se

Dated: September 21, 2026

CERTIFICATE OF SERVICE

I hereby certify that on September 21, 2026, I caused the foregoing **Plaintiff's Motion for Leave to Appeal in Forma Pauperis**, together with the accompanying affidavit and proposed order, to be filed through the Court's CM/ECF system, which will send notice of electronic filing to all counsel of record.

/s/ Joseph Kirchner
Joseph Kirchner
Plaintiff-Appellant, Pro Se